



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 35981058

Date: JAN. 13, 2025

Motion on Administrative Appeals Office Decision

Form I-140, Immigrant Petition for Alien Workers (National Interest Waiver)

The Petitioner, a restaurant manager, seeks employment-based second preference (EB-2) immigrant classification as a member of the professions holding an advanced degree or an individual of exceptional ability in the sciences, arts or business, as well as a national interest waiver of the job offer requirement attached to this classification. *See* Immigration and Nationality Act (the Act) section 203(b)(2), 8 U.S.C. § 1153(b)(2).

The Director of the Nebraska Service Center denied the petition, concluding that the record did not establish the Petitioner's eligibility for the requested EB-2 classification or a national interest waiver. We dismissed a subsequent appeal as well as a combined motion to reopen and reconsider. The matter is now before us again on combined motions to reopen and reconsider.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). Upon review, we will dismiss the combined motions.

A motion to reopen must state new facts and be supported by documentary evidence. 8 C.F.R. § 103.5(a)(2). A motion to reconsider must establish that our prior decision was based on an incorrect application of law or policy and that the decision was incorrect based on the evidence in the record of proceedings at the time of the decision. 8 C.F.R. § 103.5(a)(3). Our review on motion is limited to reviewing our latest decision. 8 C.F.R. § 103.5(a)(1)(ii). We may grant motions that satisfy these requirements and demonstrate eligibility for the requested benefit. *See Matter of Coelho*, 20 I&N Dec. 464, 473 (BIA 1992) (requiring that new evidence have the potential to change the outcome).

In our first appellate decision, we agreed with the Director's conclusion that the Petitioner did not establish eligibility for the underlying EB-2 immigrant classification. We concluded that, because the Petitioner did not contest the Director's determination regarding his eligibility as an advanced degree professional, we considered that issue waived.¹ And we concluded that the record did not establish the Petitioner is an individual of exceptional ability because he did not meet any of the six evidentiary

¹ An issue not raised on appeal is waived. *See, e.g., Matter of O-R-E-*, 28 I&N Dec. 330, 336 n.5 (BIA 2021) (citing *Matter of R-A-M-*, 25 I&N Dec. 657, 658 n.2 (BIA 2012)).

criteria at 8 C.F.R. § 204.5(k)(3)(ii). Moreover, because the Petitioner did not establish eligibility for the underlying EB-2 classification, we reserved our consideration of his appellate arguments regarding the national interest waiver.²

In our most recent decision dismissing the Petitioner's combined motion to reopen and reconsider, incorporated here by reference, we determined that the Petitioner did not submit new evidence or new facts that establish eligibility for the requested benefit, nor did the Petitioner identify any error of law or policy in our prior decision. Instead, we concluded that the Petitioner's motion merely reargued facts and issues we considered in our previous decision. Accordingly, we dismissed the Petitioner's combined motions to reopen and reconsider because it did not meet the regulatory requirements. 8 C.F.R. § 103.5(a)(4)

On motion, the Petitioner submits a brief, a copy of our most recent decision dismissing his combined motions to reopen and reconsider, as well as evidence previously submitted before the Director. In his brief, the Petitioner does not address our determination regarding his eligibility for EB-2 immigrant classification, nor does he address the most recent decision dismissing his combined motions to reopen and reconsider.³ Instead, the Petitioner reiterates the same claims previously made on appeal regarding his eligibility for the requested national interest waiver. Because the Petitioner has not established new facts relevant to our most recent decision that would warrant reopening of the proceedings, nor has he shown that we erred as a matter of law or policy we have no basis for reopening or reconsideration of our decision, and the combined motions will be dismissed. 8 C.F.R. § 103.5(a)(4).

As stated, the scope of a motion is limited to "the prior decision" and "the latest decision in the proceeding." 8 C.F.R. § 103.5(a)(1)(i), (ii). The Petitioner's contentions in their current motion merely reargue facts and issues we have already considered in our previous decisions. *See e.g., Matter of O-S-G-*, 24 I&N Dec. 56, 58 (BIA 2006) ("a motion to reconsider is not a process by which a party may submit, in essence, the same brief presented on appeal and seek reconsideration by generally alleging error in the prior Board decision"). We will not re-adjudicate the petition anew and, therefore, the underlying petition remains denied.

ORDER: The motion to reopen is dismissed.

FURTHER ORDER: The motion to reconsider is dismissed.

² See *INS v. Bagamasbad*, 429 U.S. 24, 25 (1976) (stating that agencies are not required to make "purely advisory findings" on issues that are unnecessary to the ultimate decision); see also *Matter of L-A-C-*, 26 I&N Dec. 516, 526 n.7 (BIA 2015) (declining to reach alternative issues on appeal where an applicant is otherwise ineligible).

³ In the brief accompanying the combined motions to reopen and reconsider the Petitioner does not acknowledge our prior decisions, and instead discusses the denial of his Form I-485, Application to Register Permanent Residence or Adjust Status, which is not the subject of this combined motion.